

SENATE No. 2682

The Commonwealth of Massachusetts

PRESENTED BY:

Dylan A. Fernandes

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act requiring equitable funding for non-regional school districts with high transportation costs.

PETITION OF:

NAME:

Dylan A. Fernandes

DISTRICT/ADDRESS:

Plymouth and Barnstable

SENATE No. 2682

By Mr. Fernandes, a petition (accompanied by bill, Senate, No. 2682) (subject to Joint Rule 12) of Dylan A. Fernandes for legislation to require equitable funding for non-regional school districts with high transportation costs. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act requiring equitable funding for non-regional school districts with high transportation costs.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 29 of the General Laws is hereby amended by inserting after section 2JJJJJ the
2 following section:-

3 2KKKKKK. (a) There shall be established and set up on the books of the commonwealth
4 a separate fund to be known as the Extraordinary Routes Relief Fund. The fund shall be credited
5 with: (i) appropriations or other money authorized or transferred by the general court and
6 specifically designated to be credited to the fund; (ii) funds from public and private sources,
7 including, but not limited to, gifts, grants and donations; and (iii) any interest earned on the
8 assets of the fund. Amounts credited to the fund shall be expended, subject to appropriation, in
9 grants to eligible non-regional school districts for transportation costs, including but not limited
10 to the purchase and maintenance of buses, fuel costs and driver salaries. Amounts credited to the
11 fund shall be made available for expenditure upon their certification pursuant to section 5I. The

account shall not be subject to section 5C. The comptroller shall certify the balance of the fund at the end of each fiscal year.

(b) There shall be a committee to oversee the fund established in subsection (a). The committee shall consist of 11 members to be appointed by the commissioner of elementary and secondary education, 8 of whom shall be representatives from regional and non-regional school districts, and 3 of whom shall be representatives of the department of elementary and secondary education. The committee shall ensure the fair and transparent allocation of funds through a grant program to eligible non-regional school districts.

(c) Eligible non-regional school districts may apply for grants from the fund to cover a portion of their transportation-related expenses. A non-regional school district shall be eligible to apply for a grant from the fund if its transportation costs per pupil exceed 125 per cent of the average transportation costs per pupil in the commonwealth, as determined by the department of elementary and secondary education. The committee may grant a school district up to 40 per cent of the excess between the school district's transportation costs per pupil and the average transportation costs per pupil in the commonwealth.

(d) Annually, not later than July 1, each school district applying for a grant shall submit a report to the department of elementary and secondary education that shall include, for the preceding school year, the number of pupils in the district, the district's actual transportation costs, the number of school busses or other transport vehicles used and the total number of miles traveled for school transport.

(e) Annually, the department of elementary and secondary education shall conduct a review of the effectiveness and impact of the funds expended from the fund and evaluate

34 whether non-regional school districts are receiving adequate support to address their
35 transportation challenges. Annually, not later than June 30, the department shall submit a report
36 to the clerks of the house of representatives and the senate and the joint committee on education.